Rajesh Boragala vs State Nct Of Delhi on 18 December, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 4333/2025

RAJESH BORAGALA

Through: Mr
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Ad

versus

STATE NCT OF DELHI .....Respon

Through: Mr. Utkarsh, APP for the Stat

CORAM:

HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA

ORDER

% 18.12.2025 CRL.M.A. 37941/2025 (for Interim relief)

1. Application under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023, has been filed on behalf of the Petitioner seeking grant of interim protection to him from arrest in FIR No. 60/2023 registered at Police Station Cyber (Outer District), Delhi, during the pendency of the accompanying Bail Application.

2. Learned counsel for the Petitioner submits that his accompanying Bail Application be heard and he is not pressing the present Application.

3. The Application is disposed of accordingly, as not pressed. BAIL APPLN. 4333/2025:

4. Bail Application under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, has been filed on behalf of the Applicant/Petitioner, Rajesh Boragala seeking Anticipatory Bail in FIR No. 60/2023 dated 22.07.2023 under Section 420/120B/34 Indian Penal This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 23/12/2025 at 20:44:07 Code, 1860 (hereinafter referred to as 'IPC') registered at Police Station Cyber (Outer District).

5. It is submitted the Applicant is a permanent resident of Telangana with no criminal antecedents. The FIR has been registered on the Complaint of one Rohit, who alleges that he had been induced by a person using the Facebook identity "Penelope Tan" and certain WhatsApp numbers operated from the Philippines, to invest in a crypto-trading scheme and was cheated of approximately Rs.46,00,000/-.

6. The Applicant received a Notice under Section 35 of B.N.S.S, asking him to appear on 06.10.2025 for questioning in relation to this offence. The Applicant states that the said Account was opened by him at the request of his friend, Mr. Maraveni Srikanth, who operated the Account and that the Applicant never communicated or induced the Complainant and did not benefit from the alleged proceeds.

7. The Applicant apprehending the arrest, filed a Bail Application under Section 438 of the Code of Criminal Procedure, 1973 (hereinafter referred to as 'Cr.PC') read with Section 482 B.N.S.S. for grant of pre-arrest Bail in Bail Application No. 2320/2025, before the learned District and Sessions Judge, Rohini District Courts, North-West, Delhi.

8. The Status Report was filed in the said Application, by the State. During the investigations, the Investigating Officer traced portions of the cheated funds to multiple Bank Accounts, one of which stood in the name of the Applicant. It was alleged that Rs.9,98,412/- was received in three transactions into the Applicant's ICICI Bank Account.

9. The Applicant has explained that he had appeared before the Investigating Officer on 27.10.2025, pursuant to interim protection This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 23/12/2025 at 20:44:07 previously granted and surrendered his cheque book and ATM Card, which were seized by the Investigating Officer. Thereafter, Notice under Section 35 of B.N.S.S. was again served to appear before the Investigating Officer on 15.11.2025 for further clarifications. The issuance of such statutory Notice demonstrates that the Investigating Officer does not consider the custodial interrogation necessary at the present stage.

10. The Applicant asserts that he has co-operated with the investigation till date and undertakes to fully co-operate with the Investigating Officer and to appear before him as and when required. He is ready to abide by any condition that may be imposed by this Court.

11. The grounds on which the Bail is sought are that the essential ingredients of Section 420 IPC i.e. a dishonest inducement by the Accused, deception and delivery of property pursuant thereto, is absent against the Applicant. There is no material that he made any representation or induced the Complainant, to part with the money.

12. Reliance is placed on Mariam Fasihuddin & Anr. vs. State, (2024) 1 S.C.R. 623 wherein it has been held that mere routing/possession of funds through a Bank Account, without proof of dishonest inducement or mens rea at inception, does not constitute an offence under Section 420 IPC. The custodial interrogation of the Applicant, is not required. The requisite material i.e. Bank Records, IP logs, WhatsApp and Facebook data requested in digital/documentary form, is already in the possession of the Investigating Officer. Arrest at this stage would amount to pre-trial punishment and stigmatization without necessity. He poses no risk and shall not tamper with the evidence.

13. Learned Sessions Judge while dismissing the earlier Bail Application This is a digitally signed order.

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14. The Applicant undertakes not to leave the country without prior permission. Hence, the prayer is made that he be granted Anticipatory Bail.

15. The Status Reports have been filed on behalf of the State, before the learned Court of Sessions wherein it was stated that during investigations, it was found that the cheated amount was credited into 10 different Bank Accounts. Verification from the concerned banks revealed that most of these mule accounts had zero or nil balance, leaving no scope for recovery at present. An amount of Rs.5,00,000/- was, however, traced and the same has been released to the Complainant's Account in compliance with the directions of the Court.

16. Further, details regarding the alleged Facebook profile (https://www.facebook.com/belle101Paris) were obtained from Facebook. However, the data revealed that the Account was being operated from the Philippines. Similarly, details of the WhatsApp numbers used by the Accused persons were procured, and the IP logs also confirmed the usage tracing it to the Philippines. The alleged Facebook ID & WhatsApp numbers are being operating from outside India.

17. During the course of investigation, Notice under Section 35(3) B.N.S.S. was served to the Applicant, Rajesh Borugalla, allegedly Layer-1 beneficiary, having Account No. 61805011793 in ICICI Bank, through the Samanvay Portal. Notice was given to the Applicant through e-mail as well as through Speed Post, asking him to join the investigations. However, he has failed to do so till date. The ICICI Bank Account No. 61805011793, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 23/12/2025 at 20:44:07 which was registered in the name of the Applicant, has received a total amount of Rs.9,98,412/-, in three transactions of Rs.4,00,000/-, Rs.3,90,000/- and Rs.2,08,412/-, from the Account of the Complainant on 01.07.2023. There are 09 other alleged Layer-1 beneficiary accounts, which are under investigation.

18. It is further submitted that the investigations have to be conducted from the Applicant, to trace out the other accused persons involved in this incident. It is also stated that total 32 Complaints have been lodged against the aforesaid Account Number 61805011793, in the name of the Applicant. The Anticipatory Bail is, therefore, opposed.

19. In the Second Status Report, it has been stated that during interrogation, Accused Rajesh had revealed that he had shared his Bank Account details and ATM Card with his friend, Maraveni Srikanth, which shows that he was aware of the credit and debit transactions in the said Account.

20. In the Third Status Report, it has been further stated that the Applicant did not disclose complete address and details of his friend. He has failed to provide any specific or relevant information regarding the alleged transactions related to the present Case.

21. Notice under Section 94 BNSS was also sent to the concerned TSPs by the Investigating Officer in August, 2023, to provide CAF/CDR of the alleged Mobile No. 9620176242 of the Applicant, but CDR and CAF has not been provided. Now TSP (Vi) has provided only CAF of the Mobile Number , which is found to be registered in the name of Sri Venkateshwara Hotel, Bangalore, Karnataka wherein Bulk Mobile Numbers were purchased by the Hotel, in the name of different persons. The same is yet to be verified This is a digitally signed order.

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22. It is asserted that the Applicant had opened the Current Account without having any work of business and did not disclose any such work of business during the investigations. He did not even submit any proof regarding sending of the Bank Account, ATM details to Maraveni. It was further stated that the Applicant is hiding facts and has not disclosed the real sequence of events and true facts during interrogation. He did not even disclose about handing over of the SIM Card or issuance of any new SIM Card in his name, during investigations.

23. The Applicant is directly involved in this case and may have sold his accounts/details in lieu of money or may have even operated the Account himself. The investigations are still on going. The Anticipatory Bail Application is opposed.

Submissions heard and the record perused.

24. The first contention raised by the Petitioner is that he had opened the account at the request of his friend, Mr. Maraveni Srikanth who had operated the account and the Applicant has not induced the Complainant. There is no requisite mens rea of the Applicant at the time of inception of opening of the bank account and therefore, no prima facie offence under Section 420 IPC is made out.

25. As per the Prosecution and as per the submissions of the Applicant himself, he had opened the account at the request of his friend, Maraveni Srikanth. Interestingly, his registered email was attached to his registered mobile phone, but the account was being operated through another mobile This is a digitally signed order.

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26. The very fact that the Applicant opened the account at the instance of his friend and it was being operated by his friend, prima facie reflects his complicity in this entire crime, where the money is taken in an account at the layer one and thereafter, quietly siphoned off into multiple accounts at different levels, thereby making it difficult for the money to be traced.

27. Here in the present case, Rs.9,98,412/- was transferred in the account of the Applicant by the Complainant and thereafter, the money got transferred to other accounts at different layers. The very manner in which the entire offence took place, points to the active complicity of the Applicant, which cannot be overlooked at this stage especially, when the investigations are still ongoing. It is an offence which could not have happened unless the Applicant at the layer one had opened the Account facilitating the transfer of money and its siphoning off.

28. The Applicant has further asserted that he has joined the investigations and has submitted his cheque book and ATM card which have been seized by the IO. He has cooperated with the investigations till date and also undertakes to fully cooperate with the investigating officer.

29. However, it cannot be cannot be overlooked that it is not a crime confined to the Applicant, but it involves a huge network where multiple accounts were opened and the money has been siphoned off. The investigations are still ongoing and the entire modus of the commission of the offence wherein the Complainant has been cheated of his Rs.46 lacs, is yet under investigation.

30. It cannot be also ignored that the offence involves is under 420 IPC wherein the punishment is less than seven years and the Investigating This is a digitally signed order.

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31. Considering that the investigation is at the nascent stage and also that the Rs.9,98,412/- which had been siphoned off through the account of the Applicant, is yet to be traced and also considering that there are 32 Complaints relating to cyber fraud against the bank Account in the name of the Applicant, it is not a fit case for grant of Anticipatory Bail.

32. The Bail Application is hereby rejected.

33. The pending Applications are accordingly, disposed of.

NEENA BANSAL KRISHNA, J DECEMBER 18, 2025/RS This is a digitally signed order.

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